

M/s Subhash Stone Product v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 October 2018 · Writ-C No. 35684 of 2018 · **Writ dismissed with liberty to object under clause 6.5 before the Executive Engineer.**

HEADNOTE

A consumer disputing an electricity bill that is being recovered as arrears must object before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ to quash the recovery is dismissed with liberty to take that remedy.

FACTUAL SUMMARY

M/s Subhash Stone Product filed a writ petition to quash a recovery order dated 26 December 2017 under which Rs.7,47,632 was sought as arrears of electricity bill. Counsel for the petitioner, for respondent no. 3 (Executive Engineer, Vidhut Vitran Khand II, U.P. Power Corporation Limited, Pipari, District Sonbhadra), and the Standing Counsel for the State respondents were heard. The petitioner's case was that the bill itself was disputed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — objection to Executive Engineer

HOLDING

A consumer who disputes an electricity bill being recovered as arrears must file an objection before the concerned Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005; a writ seeking quashing of the recovery is dismissed with liberty to pursue that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY OF RS.7,47,632

Not examined on merits; petitioner relegated to a clause 6.5 objection. ¶ 1